

COMMITTEE ON EDUCATION
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1754
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-235, Arizona Revised Statutes, is amended to
3 read:

4 15-235. Division of special education; director; duties;
5 qualifications; advisory committee; members

6 A. ~~THE~~ division of special education is established to carry out
7 this section, ~~section~~ SECTIONS 15-235.01 AND 15-236 and chapter 7, article
8 4 of this title subject to the superintendent of public instruction.

9 B. There shall be at least one director of the division of special
10 education.

11 C. The director or directors shall carry out this section, ~~section~~
12 SECTIONS 15-235.01 AND 15-236 and chapter 7, article 4 of this title and
13 the duties prescribed by the state board of education relating to the
14 administration of this section, ~~section~~ SECTIONS 15-235.01 AND 15-236 and
15 chapter 7, article 4 of this title.

16 D. The division of special education may review special education
17 programs, including placement of pupils, to determine that program,
18 evaluation and placement procedures comply with sections 15-766 and 15-767
19 and the rules approved by the state board of education.

20 E. Only a person who is experienced in special education is
21 eligible for appointment as a director of the division of special
22 education.

23 F. A special education advisory committee is established that shall
24 advise and consult with the state board of education, the superintendent
25 of public instruction and the director or directors of the division of
26 special education and that shall engage in other activities as are
27 provided in this section. The advisory committee shall be composed
28 pursuant to the requirements of 20 United States Code section

1 ~~1412(A)(21)(b) and (c)~~ 1412(a)(21)(B) AND (c). The state board of
2 education shall appoint the members of the advisory committee for
3 staggered ~~three year~~ THREE-YEAR terms. Vacancies shall be filled for the
4 unexpired term in the same manner as original appointments.

5 G. The advisory committee shall have a minimum of two meetings a
6 year.

7 H. The advisory committee annually shall elect its own chairman and
8 vice-chairman. The state board of education shall regularly submit, as
9 part of its budget request, any item or items sufficient to cover expenses
10 of the operation of the advisory committee, and of its members in
11 connection with their attendance at meetings of the advisory committee and
12 other advisory committee activities.

13 Sec. 2. Title 15, chapter 2, article 2, Arizona Revised Statutes,
14 is amended by adding section 15-235.01, to read:

15 15-235.01. Division of special education; state complaints;
16 posting requirements; redaction; student level
17 data exemption; policies and procedures;
18 "does-not-qualify" designation

19 A. THE DIVISION OF SPECIAL EDUCATION ESTABLISHED BY SECTION 15-235
20 MAY PROVIDE ASSISTANCE TO INDIVIDUALS WHO FILE OR SEEK TO FILE A COMPLAINT
21 ALLEGING THAT A SCHOOL DISTRICT OR CHARTER SCHOOL HAS VIOLATED THE
22 PROCEDURAL OR SUBSTANTIVE REQUIREMENTS OF ONE OR MORE OF THE FOLLOWING:

23 1. 20 UNITED STATES CODE SECTIONS 1411 THROUGH 1419 OR THE
24 REGULATIONS IMPLEMENTING THOSE SECTIONS.

25 2. THE LAWS OF THIS STATE RELATING TO THE PROVISION OF SPECIAL
26 EDUCATION.

27 B. FOR ANY COMPLAINT ALLEGING A VIOLATION DESCRIBED IN SUBSECTION A
28 OF THIS SECTION THAT IS FILED WITH THE DEPARTMENT AND THAT IS FOUND TO BE
29 INCOMPLETE OR DESIGNATED AS "DOES-NOT-QUALIFY", THE DIVISION SHALL CONTACT
30 THE COMPLAINANT AND REQUEST MISSING INFORMATION OR NECESSARY SIGNATURES.

31 C. NOT LATER THAN ~~[SIXTY]~~ [NINETY] DAYS AFTER COMPLETING A STATE
32 COMPLAINT INVESTIGATION, THE DEPARTMENT SHALL POST ON THE DEPARTMENT'S
33 WEBSITE ALL STATE COMPLAINT INVESTIGATIVE REPORTS FOR THE STATE COMPLAINT,
34 INCLUDING [THE ALLEGED VIOLATION.] ANY CORRECTIVE ACTION [OR], [IF THE]
35 [DISMISSAL LETTERS FOR ANY] COMPLAINT [THAT] IS DESIGNATED AS
36 "DOES-NOT-QUALIFY" [, DISMISSAL LETTERS] [AND THE REASON FOR DISMISSAL].
37 NOTWITHSTANDING ANY OTHER LAW, THE DEPARTMENT SHALL REDACT ALL STATE
38 INVESTIGATIVE REPORTS THAT ARE POSTED PURSUANT TO THIS SUBSECTION TO
39 REMOVE PERSONALLY IDENTIFIABLE INFORMATION ~~[AND]~~ AS REQUIRED BY ~~[ONLY]~~
40 [STATE OR FEDERAL] STUDENT PRIVACY LAWS. [THE DEPARTMENT SHALL PREPARE
41 AND POST THE STATE INVESTIGATIVE REPORTS IN A SIMILAR MANNER AS THE DUE
42 PROCESS COMPLAINTS THAT ARE PREPARED AND POSTED PURSUANT TO THE
43 INDIVIDUALS WITH DISABILITIES EDUCATION ACT (P.L. 91-230; 84 STAT. 175; 20
44 UNITED STATES CODE SECTIONS 1401 THROUGH 1485).]

45 D. STATE COMPLAINT INVESTIGATIVE REPORTS THAT ARE POSTED PURSUANT
46 TO SUBSECTION C OF THIS SECTION ARE NOT STUDENT LEVEL DATA AS DEFINED BY
47 SECTION 15-1042.

1 E. THE DEPARTMENT SHALL ADOPT POLICIES AND PROCEDURES FOR STATE
2 COMPLAINTS DESCRIBED IN THIS SECTION AND SHALL POST THE POLICIES AND
3 PROCEDURES ON THE DEPARTMENT'S WEBSITE. THE POLICIES AND PROCEDURES
4 ADOPTED PURSUANT TO THIS SUBSECTION ARE SUBJECT TO THE FOLLOWING
5 REQUIREMENTS:

6 1. THE POLICIES AND PROCEDURES MUST INCLUDE POLICIES AND PROCEDURES
7 RELATING TO THE REDACTION OF STATE COMPLAINT INVESTIGATIVE REPORTS.

8 2. BEGINNING DECEMBER 1, 2026, THE DEPARTMENT SHALL PROVIDE AN
9 OPPORTUNITY FOR PUBLIC COMMENT FOR AT LEAST SIXTY DAYS BEFORE DRAFT
10 POLICIES AND PROCEDURES MAY BECOME EFFECTIVE.

11 3. THE DEPARTMENT SHALL DESIGN THE POLICIES AND PROCEDURES TO
12 PROTECT THE PERSONALLY IDENTIFIABLE INFORMATION OF STUDENTS AND TO PROMOTE
13 THE TRANSPARENCY OF THE STATE COMPLAINT PROCESS, INVESTIGATIVE REPORTS AND
14 STUDENT OUTCOMES.

15 F. FOR THE PURPOSES OF THIS SECTION, A REPORT IS DESIGNATED AS
16 "DOES-NOT-QUALIFY" IF THE DEPARTMENT DETERMINES ANY OF THE FOLLOWING:

17 1. THE STUDENT IS NOT A CHILD WITH A DISABILITY AS DEFINED IN
18 SECTION 15-761.

19 2. NONE OF THE ALLEGATIONS IN THE COMPLAINT ARE A VIOLATION THAT IS
20 DESCRIBED IN SUBSECTION A, PARAGRAPH 1 OR 2 OF THIS SECTION.

21 3. THE NATURE OF THE ALLEGATIONS IN THE COMPLAINT ARE OUTSIDE THE
22 DEPARTMENT'S INVESTIGATIVE AUTHORITY.

23 Enroll and engross to conform

24 Amend title to conform

And, as so amended, it do pass

MATT GRESS
CHAIRMAN

1754EDUCATION.docx

03/24/2026

04:52 PM

C: VS

130WKCVUU